

25TRCV03529 25TRCV03529

County: los-angeles

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Case Number: 25TRCV03529 Hearing Date: August 5, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

DANIELLE

NICOLE PAGE, an individual; MICHAEL JACHETTA, an individual

Plaintiff,

Case

No.:

25TRCV03529

vs.

[Tentative]

Sustained/overruled

SALLY A.

TRAVI, an individual; MITCHELL MANAGEMENT, a Business Entity Form Unknown;

JULIE MITCHELL, an individual; and DOES 1 through 25, inclusive

Defendant.

Hearing

Date: August

5, 2026

Moving Parties: Defendants Sally A. Travi and Julie

Mitchell

Responding Party: Plaintiffs Danielle Nicole Page and Michael

Jachetta

HEARING: Demurrer with MTS

The

Court considered the moving, opposition, and reply papers.

RULING

The Court sustains the Demurrer as

to the third cause of action.

The Court overrules the Demurrer as

to Plaintiff Jachetta.

BACKGROUND

On

October 15, 2025, Plaintiffs Danielle

Nicole Page and Michael Jachetta filed the Complaint against Defendants Sally

A. Travi, Julie Mitchell, and Mitchell Management, alleging causes of action

for breach of contract, tortious breach of the implied warranty of

habitability, and violation of Civ. Code sections 1942.4, 1940.2, and 1950.5,

negligence, tenant harassment, constructive eviction, just cause of eviction

ordinance, violation of Business and Professions Code section 17200, and

negligent misrepresentation.

On February 13, 2026, Plaintiffs filed the First

Amended Complaint (FAC).

On July 2, 2026, Defendants filed the Demurrer.

On July 21, 2026, Plaintiffs filed the Opposition.

On July 28, 2026, Defendants filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet
and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement

can be reached that would resolve the objections to be raised in the demurrer.”
(Code Civ. Proc., § 430.41,
subd. (a).

On March 6, 2026, Defendants reached out to Plaintiffs
regarding the Demurrer. Therefore, the Court finds that Defendant has satisfied
the meet and confer requirements.

Defendants demur to the entire Complaint as to Plaintiff
Jachetta and the third cause of action as to all Plaintiffs.

Plaintiff Jachetta

In
its January 28, 2026, Minute Order on Defendants' demurrer and motion to strike
the Complaint, the Court sustained the demurrer as to Plaintiff Jachetta with
leave to amend. The Court found that the attached lease listed only Plaintiff
Page as a tenant, that the Complaint failed to allege any facts showing
Defendants consented to Mr. Jachetta's tenancy, and that, absent a
landlord-tenant relationship, the Complaint failed to allege any duty
Defendants owed Mr. Jachetta. Defendants argue that the additional allegations
in paragraphs 12 through 14 of the FAC do not cure this pleading defect.

Defendants

first contend that any allegation that Mr. Jachetta is their tenant is directly
contradicted by the written lease attached as Exhibit 1 to the FAC, which
identifies only Ms. Page as the Tenant. They point to Paragraph 40 of the
lease, which provides that all understandings between the parties are
incorporated in the agreement and that its terms are intended as a final,
complete, and exclusive expression of the parties' agreement that may not be
contradicted by evidence of any prior or contemporaneous oral agreement.
Defendants argue that Mr. Jachetta is not a tenant because he is not a party to
the lease, and that where facts appearing in an attached exhibit contradict
facts alleged in the complaint, the facts in the exhibit take precedence. (See *Holland
v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

Defendants

next contend that the FAC's theory that they consented to Mr. Jachetta's
tenancy through their lack of affirmative action to terminate his occupancy
lacks merit. They rely on Paragraph 34 of the lease, which requires all

occupants 18 years of age or older to complete a lease rental application. Defendants argue that this provision requires Mr. Jachetta to complete a separate rental application in order to become their tenant, that the FAC contains no allegation he ever submitted one, and that he is therefore barred from becoming their tenant regardless of any passive acquiescence on their part in his occupancy. They further argue that Ms. Travi's November 18, 2024 landlord declaration and the 60-day notice of termination, both of which name Mr. Jachetta as a tenant, do not establish a landlord-tenant relationship under the express terms of the lease.

Defendants

also contend that the FAC fails to allege any facts supporting its conclusory assertion that they owed Mr. Jachetta duties of reasonable care and statutory duties to maintain the Premises in a safe and habitable condition for persons foreseeably residing there. They argue that, in the absence of a landlord-tenant relationship, the only cause of action Mr. Jachetta may potentially have standing to bring is the Fourth Cause of Action for Negligence, and that even as to that claim the FAC fails to allege any facts showing they owed him a duty to provide a residential rental property meeting minimum standards of habitability or to allow him the peaceful and quiet enjoyment of the Premises when he is not a tenant.

For

these reasons, Defendants argue that Mr. Jachetta lacks standing to bring any of the causes of action alleged in the FAC because he is barred from being their tenant under the express terms of the lease and has not alleged any facts showing they owed him any special duties outside the landlord-tenant context. Defendants request that their demurrer to the entire FAC with respect to Plaintiff Jachetta be sustained without leave to amend.

In opposition, Plaintiffs argue that

a demurrer to an entire pleading fails if any cause of action within it is adequately stated, and that Defendants defeat their own motion by conceding Mr. Jachetta may have standing to bring the Fourth Cause of Action for negligence, so the demurrer must be overruled on that basis alone. Plaintiffs also contend that a landlord's duty to maintain habitable, safe premises runs to all persons who foreseeably reside on the property and not merely to lease signatories. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 916-917.)

Plaintiffs

further argue that the exhibit-controls rule does not apply because there is no genuine contradiction. (Holland, *supra*, 86 Cal.App.4th 1443, 1447.) The 2022 lease naming only Ms. Page is consistent with Mr. Jachetta becoming a tenant later by occupancy and acquiescence, and the integration clause bars only prior or contemporaneous agreements, not a relationship created afterward. They add that Defendants cannot invoke the rule selectively, since the later exhibits naming Mr. Jachetta as a tenant would control as fully as the lease, leaving a factual dispute unsuitable for demurrer.

Plaintiffs

also contend that paragraph 34 of the lease is a waivable screening protection, not a bar to tenancy, and that Defendants waived it by accepting Mr. Jachetta's open occupancy and rent for eighteen months, then declaring him a tenant and serving him a tenant's termination notice. Whether that protection was relinquished is at least a question of fact that cannot be resolved on the face of the FAC, and Defendants cannot accept the benefits of a tenancy while disclaiming its obligations.

Plaintiffs

finally argue that the FAC cures the two defects the Court identified in its January 28, 2026 order. It now alleges Defendants knew of and acquiesced in Mr. Jachetta's residency and named him a tenant in the sworn declaration and 60-day notice, and it alleges duties of reasonable care and statutory habitability duties owed to all persons foreseeably residing at the Premises regardless of lease signatory status. (Stoiber, *supra*, 101 Cal.App.3d at pp. 916-917.) The defects being cured, they conclude, the demurrer should be overruled.

"The

judgment of dismissal, having been based upon demurrers attacking the complaint as a whole, can be affirmed only if no count of the complaint states facts sufficient to entitle plaintiffs to relief on any theory." (Warren v. Atchison, T. & S. F. Ry. Co. (1971) 19 Cal.App.3d 24, 29.)

Defendants

argue that Plaintiff Jachetta's negligence cause of action fails because Defendants did not owe him any duty, as he was not a tenant. However, "Civil Code section 1714, subdivision (a) establishes the general duty of each person to exercise, in his or her activities, reasonable care for the safety of others." (Vasilenko v. Grace Family Church (2017) 3 Cal.5th 1077,

1083.) “In the absence of a statutory provision establishing an exception to the general rule of Civil Code section 1714, courts should create one only where clearly supported by public policy.” (Ibid.) Here, any injury to a Plaintiff living at Defendants’ property would be foreseeable whether or not Plaintiff Jachetta was a legal tenant. (See Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 923.) Thus, the Court finds that Defendants owed Plaintiff Jachetta a duty of care. Consequently, the FAC’s claim for negligence is valid.[1]

Therefore,
the Court overrules the Demurrer as to Plaintiff Jachetta.

Cause
of Action 3 – Violation of Civ Code section 1942.4

“A
landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord’s demand or notice: The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling, A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord’s agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions, The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail. The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.”
(Civ. Code § 1942.4)

Plaintiff does not oppose the Demurrer to the third
cause of action.

Therefore, the Court sustains the
Demurrer as to the third cause of action without leave to amend.

[1]

The Court recognizes that its ruling on the original Demurrer finding that no duty was owed to Plaintiff Jachetta was in error, as the Court was not cited, nor did it find the controlling case law.